



Appeal Decision

Site visit made on 1 September 2026

by H Miles BA (hons), MA, MRTPI

an Inspector appointed by the Secretary of State

Decision date: 18 September 2026

Appeal Ref: 6011972

Semper Fidelis, Wire Mill Lane, Newchapel, Surrey RH7 6HJ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr and Mrs Newman-Bucket against the decision of Tandridge District Council.
 - The application Ref is TA/2026/347.
 - The development proposed is conversion of equestrian site to residential use, erection of eight detached dwellings.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. I have taken the description of development from the decision notice and appeal form as it accurately and succinctly describes the act of development.

Main Issues

3. The main issues are:
 - Whether the proposal would be inappropriate development in the Green Belt having regard to the National Planning Policy Framework 2026 (the Framework) and any relevant development plan policies including the effect of the proposal on the openness of the Green Belt.
 - Whether the development would promote sustainable transport modes.
 - Whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Whether Inappropriate Development

4. The Framework states that inappropriate development is, by definition, harmful to the Green Belt. Development in the Green Belt is inappropriate and thus should be approved only if very special circumstances exist, unless it falls within one of the exceptions in the Framework.
5. Of relevance to the appeal, Policy GB7 (1) (e) of the Framework provides an exception for the redevelopment of previously developed land (including a material change of use to residential or mixed use including residential), which would not

cause substantial harm to the openness of the Green Belt. In this case, this is broadly echoed by Policies DP10 and DP13 of the Tandridge Local Plan Part 2: Detailed Policies (2014) (LP).

6. There is no dispute between the parties that the appeal site is previously developed land for the purposes of the Framework. This exception specifically permits a change to residential use, however it must also not cause substantial harm to openness. I will therefore go on to consider the effects on openness.
7. The appeal site has a group of buildings in the western corner of the site with a large barn and some smaller buildings including stables towards the boundaries. In the eastern part of the site are buildings which are modest and low level. There are gaps between these buildings which breaks up the massing of these small structures. The central part of the site is mainly open and includes a sand school. The figures from the appellant and the Council vary, but in combination these buildings have a volume of between 6,130m³ - 7,270m³, a footprint of around 1,780m² and heights of 2.9m up to 5.6m.
8. The development proposes eight new two storey detached dwellings along with access routes, parking, private gardens and paraphernalia associated with the houses. They would be arranged in two groups in the eastern and western corners with open space in the northern corner and an access road which circles a planted area in the centre. The houses would have a volume of 6,260m³ a footprint of around 990m² – 1,090m² and a height of up to 8.6m.
9. Openness has both spatial and visual dimensions. The proposed development would result in a reduction in the size of the footprint of the buildings on the site and, taking the appellant's figures, there would also be a reduction in volume, but there would be a notable increase in the overall height. Additionally, the bulk of the buildings on the site would change from one large barn and a collection of low level, modest equestrian buildings to eight large two storey houses with pitched roofs. As such, although the number of buildings and volume would reduce, the proposed dwellings would be taller, bulkier and more conspicuous. The separate residential curtilages would also result in the introduction of domestic paraphernalia for multiple households as well as hardstanding for an access road and driveways which would further impact on openness. The development would be clearly seen from the footpath to the west as well as from nearby properties and consequently these effects would be highly visible. As such, there would be harm to spatial and visual openness and taken together the harm would be substantial.
10. The appellant has sought to address the concerns of the previous Inspector through the relocation of the built form and the open space to the centre and northern part of the site. However, for the reasons above, it can be seen that the appeal scheme does not result in an acceptable impact on openness.
11. As such, it is inappropriate development in terms of the Framework and Policies DP10 and DP13 of the LP as set out above.

Sustainable Transport Modes

12. The appeal site is located on Wire Mill Lane, which is a narrow rural road with no lighting or pavements. It connects to Eastbourne Road, the A22, which leads onto the services and facilities in Felbridge. There are bus stops at Wembury Park with three-four services in each direction on Monday-Friday only.

13. On Wire Mill Lane, although the speeds of vehicles are usually slow, the features set out above would not be attractive to occupants walking from the site. Particularly in hours of darkness, for children and those with mobility issues. Furthermore, the majority of services are some distance away. Whilst the bus service would provide some limited connections for those that would walk to the stop, given its infrequency it would not be suitable for most journeys. In addition, the speed and traffic flows on the main road would mean that it would not be attractive to the majority of cyclists. Whilst there may be opportunities for recreational walking and cycling nearby, overall, the vast majority of day to day journeys from the site would be likely to be by private car.
14. The appellant states that there would be a reduction in the number of vehicle movements to and from the site. Nevertheless, the new occupants would not be in a location that would limit the need to travel, particularly by private car, or offer a genuine choice of transport modes for residents and users. This is a rural area, however opportunities to improve sustainable transport have not been shown to exist. As such, even taking into account the existing situation, this would not promote sustainable transport modes or be a sustainable location for the proposed residential development.
15. Therefore, the development would not promote sustainable transport modes. As such, it would be contrary to Policy CSP1 of the Tandridge District Core Strategy (2008) (CS) which seeks to locate development where it promotes sustainable patterns of travel, amongst other things.

Other Considerations

16. The Council cannot demonstrate a 5 year supply of deliverable housing sites. The appellant states that there is a 1.92 year supply and this is not disputed by the Council and the latest Housing Delivery Test figures show a measurement of 38%. The proposed development would provide the social and economic benefits of eight houses in an area where there is a clear shortfall and I afford substantial weight to the benefits of providing these homes. I have also taken into account the scale of the development proposed. Overall, the benefits would be moderate in this case.

Green Belt Balance

17. The proposal would be inappropriate development in the Green Belt which is, by definition, harmful. There is also harm to the Green Belt due to the effect on openness. In addition, there are unacceptable effects with regard to sustainable transport. Substantial weight should be given to the harm to the Green Belt. Very special circumstances will not exist unless the harm to the Green Belt and any other harm is clearly outweighed by other considerations.
18. On the other hand, the proposed development results in the moderate benefits identified above. Consequently, the considerations advanced by the appellant, even when considered together, do not clearly outweigh the totality of the harm. The very special circumstances necessary to justify the development therefore do not exist. As such the proposal conflicts with the Framework and DP10 and DP13 of the LP, the aims of which are set out above.

Planning Balance

19. The development would be outside a settlement, However Policy S5 (5) of the Framework states that it does not apply to development proposals in the Green Belt which, in these circumstances, should be determined in accordance with policies GB6 and GB7. The development proposals do not accord with an up-to-date development plan or the decision-making policies in the Framework. Consequently, the presumption in favour of sustainable development does not apply in this case.

Conclusion

20. The proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it. Therefore, for the reasons given above the appeal should be dismissed.

H Miles

INSPECTOR